Chapter 1: First Amendment Overview

Big Picture

- **Clauses:** Establishment and Free Exercise (the Religion Clauses); Free Speech; Free Press (treated as giving the press the same rights as everyone); Assembly and Petition (overlap with speech).
- **Who is bound:** the Fourteenth Amendment incorporates the First Amendment against state and local governments (*Cantwell* for Free Exercise). Private actors are **not** bound, though many private universities adopt free-speech policies voluntarily.
- **Not absolute:** falsely shouting "Fire" in a crowded theater and fraud can be punished; religious *practice* (not belief) can collide with law (peyote, homeschooling). The Court balances First Amendment values against serious harms.
- **Theme:** "freedom to think as you will and to speak as you think." Always ask **why** the Court adopted or rejected a rule.

Whitney v. California (1927) (Brandeis, J., concurring)

Read for values, not doctrine. The majority was later overruled by Brandenburg (Ch. 4).

- Liberty is both an end and a means to discovering political truth.
- The remedy for evil counsels is good ones — counterspeech, not coerced silence.
- Public discussion is a political duty; an inert people is the greatest menace to freedom.
- Fear breeds repression, repression breeds hate, and hate menaces stable government.
- Speech and assembly are guaranteed against the occasional tyranny of majorities.
- **Casebook gloss:** "freedom to think" unites all the clauses — no official church dictating belief, protection of belief, and peaceful tools (speech, assembly, petition) for changing policy.

West Virginia State Board of Education v. Barnette, 319 U.S. 624 (1943)

6-3, Jackson, J. Overruled Minersville School District v. Gobitis (1940).

Rule: Government may not compel anyone to affirm a belief: "no official, high or petty, can prescribe what shall be orthodox in politics, nationalism, religion, or other matters of opinion or force citizens to confess by word or act their faith therein."

Facts: West Virginia required public school students to salute the flag and recite the Pledge; refusal was insubordination. Jehovah's Witness children, who viewed the flag as a "graven image," were expelled and threatened with reformatories; parents were prosecuted. Attendance was compulsory.

Holding: The compelled salute and pledge violate the First Amendment.

- **Teaching vs. compelling:** the state may teach history and civics and acquaint students with the salute and its meaning; it may not compel students to *declare* a belief.
- **Speech, not religion:** the result doesn't depend on religious views or sincerity; secular objectors are equally protected.
- **Symbolic conduct** (the salute) is a form of utterance.

- **Heightened protection:** speech and worship may be restricted only to prevent "grave and immediate danger," not on a rational basis.
- **Counter-majoritarian:** fundamental rights "depend on the outcome of no elections" — rejecting *Gobitis*'s deference to legislatures.
- **Ends vs. means:** national unity may be pursued by persuasion and example, not compulsion; coerced unity "achieves only the unanimity of the graveyard."
- No competing private rights were involved — only authority vs. the individual.
- **Wartime context:** decided in 1943, during World War II. The board had first required a "stiff-arm" salute that civic groups objected to as "too much like Hitler's"; Jackson reasoned that the nation was fighting to protect exactly these freedoms.

Kennedy v. Bremerton School District, 597 U.S. 507 (2022)

6-3, Gorsuch, J.

Rule: Disciplining a public employee's private prayer because it is religious triggers strict scrutiny. The Establishment Clause is read by history and tradition (*Lemon* and the endorsement test are abandoned), and it bars **coercion** — which requires more than visible religious exercise.

Facts: A high school football coach knelt at midfield after games to pray. At the district's request he had stopped locker-room prayers and religious talks; he was disciplined for praying quietly after three October 2015 games. The district claimed it had to act to avoid coercing students (Establishment Clause).

Holding: The district violated the coach's Free Exercise rights.

- **Free Exercise:** the district admitted acting partly because the conduct was religious, so the policy was not neutral (framework in Ch. 2).
- **Clauses are complementary:** they share one sentence; the Establishment Clause doesn't automatically trump free exercise and speech.
- **No coercion:** the prayer was brief, quiet, and personal; no students joined; there was no record evidence of pressure; high schoolers can tell permission from endorsement; tolerating others' prayer is part of living in a pluralistic society. Treating any visible religious conduct by a teacher as coercive would be hostility to religion.

Dissent (Sotomayor, Breyer, Kagan): the majority misread the record — the coach had a long practice of demonstrative 50-yard-line prayers, invited others, and led students in prayer. The Court overruled *Lemon* and applied a "nearly toothless" coercion test that ignores school pressures.

Mahmoud v. Taylor, 145 S. Ct. 2332 (2025)

6-3, Alito, J. Preliminary injunction posture.

Rule: If a school policy **substantially interferes with the religious development** of a child (a *Wisconsin v. Yoder*-type burden), strict scrutiny applies **even if the policy is neutral and generally applicable**. The inquiry is fact-intensive: the specific beliefs, the nature of the curriculum, the children's **age**, and the context.

Facts: Montgomery County (MD) added five LGBTQ-inclusive storybooks to K-5 English. Teachers had to use them and were given guidance for discussion (e.g., calling a student's objection "hurtful"). The board rescinded notice and opt-outs while keeping other opt-outs, including the state-mandated sex-ed unit.

Muslim, Catholic, and Orthodox parents sued.

Holding: The parents are likely to succeed; they are entitled to opt-outs.

- **Parental right:** religious education of children is protected religious exercise; it extends outside the home (*Pierce v. Society of Sisters*) and would be an "empty promise" if it stopped at the public school door.
- ***Barnette* recast** as an "especially egregious" example of direct coercion; protection isn't limited to compelled affirmation.
- **Burden:** the books are "unmistakably normative," taught by trusted teachers to young children, with correction of dissent — the same "objective danger" as *Yoder*.
- **Strict scrutiny fails:** an undisrupted classroom is a compelling interest in general, but the board's many other opt-outs undercut infeasibility, its administrability problems were of its own design, and it can't cure stigma by stigmatizing religious students.
- Private school or homeschooling is no answer — costly, and parents already fund public schools.
- **Limits the majority stressed:** the parents seek to opt out of a particular requirement, not to micromanage the curriculum; several states allow broad opt-outs without widespread problems; and the children's age is "highly relevant" (fn. 8, answering the dissent's comparison to the high schoolers in *Kennedy*).

Dissent (Sotomayor, Kagan, Jackson): mere exposure to contrary ideas is not a burden; *Barnette* protects only against compelled declaration (it let schools acquaint students with the salute and let objectors remain passive); *Kennedy* held exposure isn't coercion; *Yoder* involved the survival of a community; the rule has no limiting principle and will chill curricula and give parents a veto.

Casebook challenge: would you also grant opt-outs from a curriculum that *denigrates* LGBTQ people? Rules must apply neutrally to similar facts, whichever side wins.

Synthesis: Coercion in Kennedy vs. Mahmoud

	Kennedy	*Mahmoud*
Alleged coercer / victims	Coach praying / high school students	Teachers using the curriculum / young children (and parents)
Majority	No coercion: private, quiet prayer; older students; no evidence of pressure	Burden: normative books; young children; trusted teachers; correction; mandatory attendance
Dissent	Coercion: demonstrative prayer at a school event; history of leading players	No coercion: mere exposure; no compelled declaration
Key distinctions	Majority: age; government instruction vs. permitted private expression; normative content vs. passive observation	Dissent: a government actor's religious exercise at an official event vs. secular curriculum that only exposes

Spectrum: *Barnette* (compelled affirmation) is the clearest coercion; *Kennedy* and *Mahmoud* fight over how far below that line coercion reaches.

Stretch Exercise: Standing for the Anthem at Graduation

	Analysis
Facts	A state university requires graduates to stand for the anthem; the ceremony is optional (the diploma doesn't depend on it). A student wants to sit in protest of military policy.
Like *Barnette*	State actor; patriotic ritual; standing is a "confession by act"; political objection is protected like religious objection.
Unlike *Barnette*	Attendance is optional; the penalty is missing the ceremony, not expulsion; adults, not children; standing is less than reciting a pledge.
Likely answer	Close. Forcing a choice between a major life event and a compelled gesture still looks coercive (*Mahmoud* rejected "just go elsewhere"), and the policy gives no passive option inside the ceremony.

Chapter 2: The Religion Clauses

Free Exercise checklist. (1) Is there a sincere religious practice that the government burdens? (2) Is the law **neutral and generally applicable**? It is not if it: targets religion or is gerrymandered by exemptions (*Lukumi*); is applied with hostility (*Masterpiece*); has a discretionary exemption system (*Fulton*); treats any comparable secular activity better, judged by risk (*Tandon*); was admittedly motivated by the conduct's religious character (*Kennedy*); or excludes religious entities from a public benefit (*Carson*). (3) If neutral and generally applicable, no exemption (*Smith*) — **unless** Wrinkle 1 (parental religious education) applies. (4) Otherwise, **strict scrutiny**: an interest of the highest order, narrowly tailored, judged as to *this* exemption; the government almost always loses. (5) Wrinkle 2: government may disfavor religion only where **necessary** to avoid an Establishment Clause violation.

Employment Division v. Smith, 494 U.S. 872 (1990)

6-3, Scalia, J.

Rule: The Free Exercise Clause does not require exemptions from **neutral, generally applicable** laws that incidentally burden religion. Religious **belief** is absolutely protected; religious **conduct** is protected only from laws that target it because it is religious.

Facts: Oregon banned controlled substances, including peyote. Smith and Black, Native American Church members, used peyote in rituals and sought an exemption. **Held:** no exemption.

- Government may not regulate belief as such, compel affirmation, punish doctrines it thinks false, impose special disabilities based on religious status, or take sides in religious disputes.
- Support: *Reynolds* (polygamy), *Prince* (child labor), *Braunfeld* (Sunday closing), *Gillette* (draft).
- **Hybrid rights:** past exemptions paired free exercise with another right — speech or press, or parents' right to direct education (*Yoder*); *Barnette* is a speech case.
- Strict scrutiny for every incidental burden would create "a private right to ignore generally applicable laws" — a "constitutional anomaly."

Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520 (1993)

9-0, Kennedy, J.

Rule: A law that burdens only religiously motivated conduct — shown by exemptions that leave comparable secular conduct untouched — is not neutral or generally applicable and fails strict scrutiny.

Facts: After a Santeria church leased land, Hialeah passed emergency ordinances banning "unnecessary" or cruel animal killing, defined to exempt many secular killings. **Held:** not neutral or generally applicable; fails strict scrutiny.

- Beliefs need not be acceptable, logical, consistent, or comprehensible to others.
- **Underinclusive for animal cruelty:** fishing, home pest extermination, euthanasia, medical research, poisoning, and hunting were all allowed.
- **Underinclusive for public health:** hunters' carcasses and restaurant garbage posed the same risks but were unregulated.

- The city's claims that secular killings were "obviously justified" were *ipse dixits*; society imposed on Santeria worshippers what it would not impose on itself.

Masterpiece Cakeshop v. Colorado Civil Rights Commission, 584 U.S. 617 (2018)

7-2, Kennedy, J.

Rule: Even a neutral law must be **applied** neutrally. Official hostility to religion, or treating a religious objection worse than comparable objections, violates the Free Exercise Clause.

Facts: Baker Jack Phillips refused to make a wedding cake for a same-sex couple (2012) because of religious objections; the Commission found discrimination. **Held:** the order violated Free Exercise and was set aside.

- **Narrow:** the Court did not resolve the tension between antidiscrimination law and the First Amendment; states can generally protect gay persons' equal access to goods and services.
- **Hostility:** commissioners said Phillips could believe but not act on his beliefs in business, and called religious justification "one of the most despicable pieces of rhetoric," comparing it to defenses of slavery and the Holocaust. No one objected.
- **Disparate treatment:** three bakers who refused cakes with messages disapproving of same-sex marriage were found to have acted lawfully.
- Government can't decide what is "offensive" (citing *Barnette*).

Dissent: Ginsburg, Sotomayor.

Fulton v. City of Philadelphia, 593 U.S. 522 (2021)

9-0, Roberts, C.J.

Rule: A formal system of **discretionary, individualized exemptions** makes a policy not generally applicable, even if no exemption has ever been granted. Strict scrutiny asks whether the government has a compelling interest in denying **this** claimant an exemption.

Facts: Philadelphia stopped referring foster children to Catholic Social Services because CSS would not certify same-sex couples. **Held:** the policy was not generally applicable and failed strict scrutiny. The Court declined to overrule *Smith*.

- The Commissioner's "sole discretion" to grant exceptions invites the government to decide which reasons are worthy.
- Interests fail as to CSS: more foster parents (CSS adds them); avoiding liability (speculative); equal treatment (weighty, but undermined by the city's own exemption system).

Tandon v. Newsom, 593 U.S. 61 (2021)

5-4 per curiam, emergency application.

Rule: A regulation triggers strict scrutiny whenever it treats **any comparable secular activity** more favorably than religious exercise. Comparability is judged by **risk** to the government's interest, and the government must show the religious activity is riskier even with the same precautions.

Facts: California limited at-home gatherings (religious or secular) to three households, while salons, stores, theaters, and restaurants could exceed that. **Held:** injunction pending appeal granted.

- It doesn't matter that some secular activities are treated as badly.
- The state "cannot assume the worst when people go to worship but assume the best when people go to work."
- **Irreparable harm:** losing free exercise rights "for even minimal periods of time" is irreparable harm. This was the fifth time the Court summarily rejected the Ninth Circuit on California's COVID limits on worship.

Dissent (Kagan, Breyer, Sotomayor; Roberts separately): the right comparator is at-home secular gatherings, which were treated identically ("apples and watermelons"); the district court found homes riskier (longer social interactions, smaller and less-ventilated spaces, less masking and distancing).

Synthesis: How a Law Fails Neutrality or General Applicability

Way it fails	Case	Specifics
Gerrymandered exemptions	*Lukumi*	Animal-killing ban exempted fishing, hunting, pest control, euthanasia
Hostility in application	*Masterpiece*	Commissioners disparaged religion; comparable bakers treated better
Discretionary exemption system	*Fulton*	"Sole discretion" to waive; unused power still counts
Comparable secular activity favored	*Tandon*	Salons, stores, theaters favored over at-home worship
Admitted religious motive	*Kennedy*	Discipline partly because the prayer was religious
Exclusion from a public benefit	*Trinity Lutheran*, *Espinoza*, *Carson*	Denied solely because of religious character
Contrast: neutral and generally applicable	*Smith*	Across-the-board drug ban; no exemption

The Two Wrinkles

- **Wrinkle 1 — parental religious education:** strict scrutiny applies even to a generally applicable law that interferes with parents' religious upbringing of their children (*Yoder*; *Mahmoud*, where the sex-ed opt-out also undercut general applicability). *Smith* treated *Yoder* as resting on an unenumerated parental right; wary of such rights after *Dobbs*, the Court in *Mahmoud* said little about the doctrinal basis.
- **Wrinkle 2 — Establishment Clause avoidance:** government may disfavor religion when **necessary** to avoid an Establishment Clause violation — but not to separate church and state more strictly than the Constitution requires (*Carson*).

The Establishment Clause and Funding

Broadly agreed: government can't establish an official religion, coerce belief, give benefits (e.g., tax exemptions) *only* to religious entities, favor one sect, or use public schools to indoctrinate (no school prayer).

Public schools are policed most strictly because they are uniquely coercive and children are impressionable: *Engel v. Vitale* (nonmandatory prayer), *Abington v. Schempp* (Bible reading), *Wallace v. Jaffree* (moment of silence for prayer), *McCollum* (religious instruction), *Edwards v. Aguillard* (special vigilance in K-12). Individual religious expression at school is still protected (*Kennedy*).

Stage	Case(s)	Rule
Old rule (repudiated)	*Lemon* era	Government could exclude religious entities from funding to avoid the appearance of support
Permitted inclusion	*Zelman* (2002)	Aid reaching religious schools through parents' genuine, independent private choice is permissible
Required inclusion	*Trinity Lutheran* (2017), *Espinoza* (2020), *Carson* (2022)	If the state subsidizes private entities, it can't exclude religious ones because they're religious; it may end the program instead

- ***Trinity Lutheran Church of Columbia, Inc. v. Comer* (2017):** Missouri denied a playground-resurfacing grant to a church-run preschool solely because it was religious; excluding otherwise eligible recipients for their religious character is "odious to our Constitution."
- ***Espinoza v. Montana Department of Revenue* (2020):** Montana's no-aid provision cut religious schools out of a tax-credit scholarship program. "A State need not subsidize private education. But once a State decides to do so, it cannot disqualify some private schools solely because they are religious."
- **Unemployment benefits:** the same principle long barred states from withholding unemployment benefits from someone who lost a job for refusing to abandon the dictates of his faith (cited in *Carson*).

"Play in the joints"	Meaning	Status
Concept #1	Government may accommodate religion **beyond** what Free Exercise requires without violating the Establishment Clause	Alive (RFRA, RLUIPA, *Cutter*)
Concept #2	Government may **decline to fund** religious entities to avoid Establishment Clause concerns, even if funding would be lawful	In retreat (rejected in the trilogy)

Carson v. Makin, 596 U.S. 767 (2022)

6-3, Roberts, C.J.

Rule: Once a state chooses to subsidize private schooling, it can't exclude schools because they are religious — even when the funds pay for religious instruction. An interest in separating church and state more strictly than the federal Constitution requires is not compelling.

Facts: For families in districts without a public secondary school, Maine paid tuition at the public or approved private school of the parent's choice — but since 1981 only at "nonsectarian" schools. Two families chose accredited religious schools. **Held:** the exclusion violates Free Exercise.

- Excluding religious entities from a generally available benefit penalizes free exercise; under *Zelman*, including them wouldn't violate the Establishment Clause.
- **Not a "public education" benefit:** participating private schools can be selective, often aren't free, don't follow the state curriculum, needn't hire certified teachers, and may be single-sex.
- **Limits:** states may keep **public** schools strictly secular and need not fund private education at all.
- **Maine's options:** it could expand its public schools, add transportation, offer tutoring, remote learning, or partial attendance, or run boarding schools of its own. What it can't do is exclude religious schools from the tuition benefit it chose to offer.

Dissent (Breyer, Kagan, Sotomayor; excerpt is Sotomayor's): the Court has gone from permitting states to decline to fund religion to requiring them to fund religious instruction; play in the joints is nearly gone; Maine must fund schools with discriminatory admissions; its "choice" was forced by geography.

Open question — religious charter schools. If charter schools are public, a religious charter violates the Establishment Clause; if private, excluding religious schools violates Free Exercise. In *Oklahoma Statewide Charter School Board v. Drummond* (2025), Oklahoma argued its charters are public (state-created, funded, supervised, open to all) and the Court split 4-4 (Barrett recused), leaving in place the state ruling barring St. Isidore's certification. Expect the issue to return. Oklahoma (represented by former Solicitor General Greg Garre) argued that federal law and 45 other states also define charter schools as public and nonsectarian, so a contrary ruling would upend charter-school laws nationwide. The likely split, judging from oral argument: Thomas, Alito, Gorsuch, and Kavanaugh (private) vs. Roberts, Sotomayor, Kagan, and Jackson (public).

RFRA, RLUIPA, and Religious Symbols

Item	Rule
RFRA (1993)	Enacted in response to *Smith*: a **substantial burden** on religious exercise requires an exemption unless the government satisfies **strict scrutiny**, even for neutral laws. A statute, not constitutional law.
***City of Boerne v. Flores* (1997)**	RFRA exceeds Congress's power as to state and local governments; it still binds the federal government.
RLUIPA; *Cutter v. Wilkinson* (2005)	Narrower statute (land use, institutionalized persons) binding states. Unanimously upheld: accommodation beyond Free Exercise is permissible, but courts must weigh burdens on nonbeneficiaries. Ginsburg warned that "at some point, accommodation may devolve into an unlawful fostering of religion."
***Burwell v. Hobby Lobby* (2014)**	5-4: RFRA exempted closely held for-profit corporations with religious owners from the ACA contraceptive mandate — showing accommodation's costs to third parties. Hobby Lobby alone had 10,000 employees who lost coverage; Ginsburg read her dissent from the bench.

Item	Rule
Monuments and money	Longstanding religious displays and short legislative prayers are generally allowed on historical grounds (Texas Capitol Ten Commandments monument upheld 5-4 in 2005 — *Van Orden v. Perry*, name supplied). Public schools are stricter because students are impressionable. Circuits uphold "In God We Trust" on currency (*Newdow v. Peterson*). In *Van Orden* the monument had stood for 40 years, the challenger was a lawyer who walked past it, and the Court noted its own courtroom shows the Ten Commandments. Lower courts allow Christmas carols in school concerts when music from other traditions is included.

Stretch Exercise: World Religions Unit (Variant on Mahmoud)

	Analysis
Facts	Tenth-grade unit with short readings from the Bible, the Quran, Buddhist texts, and secular humanist writings; students compare traditions and write a reflection on meaning and morality. Some parents seek opt-outs.
Parents	*Yoder*/*Mahmoud* wrinkle applies strict scrutiny; presenting rival moral answers pressures children; the reflection nears *Barnette*-style declaration; other opt-outs defeat general applicability.
District	Older students (like *Kennedy*); descriptive, not normative; no correction or "hurtful" labels; mere exposure; neutral under *Smith*; no limiting principle otherwise.
Likely answer	District has the better case given age and descriptive content — the factors *Mahmoud* itself stressed — unless the reflection requires students to adopt views or the district grants other opt-outs.

Chapter 3: Speech Clause Overview

Big Picture

Principle	Meaning
"Speech" is broad	Words, images (books, film, websites, social media), and symbolic acts (armbands, flags, crosses, parades, picketing).
Compelled speech is almost never OK	The right to speak includes the right not to speak (commercial speech is the main exception — Ch. 8).
Content-based restrictions get strict scrutiny	Presumptively invalid; content-neutral rules are treated more leniently (Ch. 9).
False, heinous, and harmful speech is often protected	**Distrust:** officials and courts can't be trusted to separate truth from falsity or heinous ideas from unpopular ones.
Bright lines over standards	Same distrust; the Court refuses to expand the historical unprotected categories.
Worry about chilling	Fear of liability causes self-censorship; the overbreadth doctrine and mens rea requirements counter it.

Speech checklist. (1) Government action? (2) Is it speech (including symbolic conduct)? (3) Compelled speech? (4) Content-based, viewpoint-based, or content-neutral? (5) Does it fall in a historical unprotected category, defined narrowly? (6) If content-based and not unprotected, strict scrutiny: compelling interest, "actually necessary," least restrictive means (counterspeech?). (7) Facial attacks: overbreadth; vagueness (Ch. 5).

Compelled Speech

Barnette (Ch. 1): government may pursue unity by persuasion and example, not by compelling people to affirm beliefs.

Wooley v. Maynard, 430 U.S. 705 (1977)

6-3, Burger, C.J.

Rule: The state may not require a person to display its ideological message on private property for the public to see. The right to speak and the right not to speak are complementary parts of freedom of mind.

Facts: New Hampshire required "Live Free or Die" on passenger plates and made covering it a crime. The Maynards (Jehovah's Witnesses) covered it and were fined. **Held:** the requirement is unconstitutional.

- **Passive display counts:** carrying a motto is less than saluting a flag, but the difference is "one of degree"; the car becomes a "mobile billboard," and driving is a virtual necessity.
- Majority approval of the message is irrelevant.
- **Interests fail:** vehicle identification can be achieved by plate numbers (not narrowly tailored); promoting state pride and history is an ideological interest that can't outweigh the right not to be its courier.

- **Footnote 15:** "In God We Trust" on currency is distinguishable — currency is carried privately and not associated with the bearer.
- Religious plaintiffs, but a speech rationale that protects any objector.

Dissent (White, Blackmun, Rehnquist): disagreed only on whether the plate is the government's own speech (a later topic). **Note:** compelled commercial disclosures (nutrition labels, drug side effects) are allowed — Ch. 8.

Content-Based Restrictions

Collin v. Smith, 578 F.2d 1197 (7th Cir. 1978)

3-0 in relevant part, Pell, J. Cert. denied.

Rule: Government may not ban a peaceful demonstration because of its message, even one that deeply offends or traumatizes listeners. Listener-protection is allowed only for intrusions into the **home** or on a truly **captive audience**.

Facts: A Nazi party planned a 30-minute sidewalk march with uniforms, swastikas, and placards in Skokie, home to thousands of Holocaust survivors. The village passed ordinances to block it. **Held:** the ordinances are unconstitutional.

- Judges may not engage in "ideological tyranny" any more than legislators; protecting unpopular minorities distinguishes the U.S. from the Third Reich.
- Uniforms, flags, placards, and marching are symbolic speech and assembly; a peaceful demonstration near government is speech in its classic form (*Edwards v. South Carolina*).
- **Content-based, not TPM:** the village objected to *who* was marching, not time, place, or manner.
- **The permit:** 30 to 50 uniformed demonstrators marching single file on the sidewalk for about half an hour, with placards such as "Free Speech for White America," and no speeches or handbills. NSPA was represented by David Goldberger, a Jewish ACLU lawyer.
- Government has no power to restrict expression because of its content (*Mosley*); debate must be "uninhibited, robust, and wide-open" (*NYT v. Sullivan*).
- **Recognized exceptions** (Burger, C.J., concurring in *Mosley*): obscenity, fighting words, and libel (within constitutional limits), plus, in very narrow circumstances, imminent danger of a grave substantive evil (*Brandenburg*; *Terminiello*).
- **Psychic trauma** is indistinguishable from speech that stirs anger — a high purpose of speech (*Terminiello*); shock flows from the ideas themselves (*Street*).
- No captive audience: residents could avoid Village Hall for half an hour.

American Booksellers Ass'n v. Hudnut, 771 F.2d 323 (7th Cir. 1985)

3-0, Easterbrook, J.

Rule: Government may not favor one viewpoint and silence the other — even when it is right that the disfavored speech causes real social harm.

Facts: Indianapolis banned sexually explicit material depicting women as subordinate (e.g., enjoying humiliation). **Held:** unconstitutional viewpoint discrimination.

- Explicit material treating women as equals was lawful; material treating them as subordinate was banned regardless of literary, artistic, or political value.
- The court **accepted** that such depictions perpetuate subordination — but that only shows the power of speech (as with Hitler, communism, religion, television). Seditious libel is protected unless danger is grave **and imminent**.
- Otherwise government becomes "the great censor and director of which thoughts are good for us"; any rationale couldn't be limited to sex discrimination; free speech has been an ally of those seeking change.
- **Breadth of the ordinance:** the plaintiffs' materials ran from hard-core films to Yeats's "Leda and the Swan" and the works of Joyce, Lawrence, and Cleland; it was unclear how the city would treat *Ulysses* or the *Iliad*. Feminist and civil rights groups filed amicus briefs on both sides.

United States v. Stevens, 559 U.S. 460 (2010)

8-1, Roberts, C.J.

Rule: Content-based restrictions are presumptively invalid unless the speech falls within a **historically recognized** unprotected category. Courts may not create new categories by balancing the speech's value against its costs.

Facts: 18 U.S.C. § 48 criminalized commercially creating, selling, or possessing depictions of animals being intentionally "maimed, mutilated, tortured, wounded, or killed" where that conduct is illegal, with an exception for serious value. Aimed at crush videos; Stevens was convicted for dogfighting videos. **Held:** substantially overbroad and facially invalid.

- The government's "categorical balancing" test is "startling and dangerous": the First Amendment already reflects the people's cost-benefit judgment. Descriptions of unprotected speech as low-value are descriptive, not a test. There's no tradition of banning depictions of animal cruelty.
- **Overbreadth:** read by its text, the law requires no cruelty and reaches hunting videos sold where hunting is restricted; the exceptions clause doesn't cover them. Lawful applications dwarf the crush and dogfight market.
- A government promise to prosecute only "extreme" cruelty doesn't help: the First Amendment doesn't leave us "at the mercy of *noblesse oblige*."
- **Left open:** a statute limited to crush videos or extreme cruelty.

Dissent (Alito): would have read the statute narrowly.

United States v. Alvarez, 567 U.S. 709 (2012)

6-3; Kennedy, J., plurality (with Roberts, Ginsburg, Sotomayor). Breyer and Kagan concurred in the judgment (intermediate scrutiny). Alito, Scalia, Thomas dissented.

Rule: There is no general First Amendment exception for false statements. A content-based ban on lies must be "actually necessary"; the ordinary remedy for false speech is true speech.

Facts: Alvarez falsely claimed at a public meeting that he had received the Medal of Honor, violating the Stolen Valor Act; he sought no material gain. **Held:** the Act is unconstitutional.

- Cases saying falsehood has no value involved **legally cognizable harm** (defamation, fraud); this Act targeted "falsity and nothing more."

- It reached lies anywhere, even whispered at home; upholding it would let government compile a list of subjects about which lies are crimes.
- The interest in the Medal's integrity is compelling, but there was no evidence of dilution, and counterspeech worked (Alvarez was publicly exposed and ridiculed). Marketplace of ideas (Holmes, *Abrams*).
- **Plurality** = fewer than five Justices joined the reasoning, so it's usually not binding; "concurring in the judgment" = agreeing only with the result.
- **Facts and stakes:** "Lying was his habit": Alvarez also falsely claimed he had played for the Detroit Red Wings and married a starlet from Mexico. The Medal has been awarded only 3,476 times, so the interest in its integrity is "beyond question," but the Act wasn't "actually necessary" to protect it.

Historically Unprotected Categories

Category	Key case	Chapter
Incitement (intended and likely to incite imminent lawless action)	*Brandenburg v. Ohio* (1969)	4
Fighting words	*Chaplinsky v. New Hampshire* (1942)	4
Grave and imminent threat the government may prevent	*Near* (1931); *NYT Co. v. United States* (1971)	4
True threats	*Watts v. United States* (1969)	5
Speech integral to criminal conduct	*Giboney* (1949)	5
Child pornography	*New York v. Ferber* (1982)	6
Obscenity	*Miller v. California* (1973)	6
Defamation (in certain circumstances)	*NYT v. Sullivan* line	7
Fraud	*Virginia Bd. of Pharmacy* (1976)	—
Refused: depictions of animal cruelty; false statements as such	*Stevens*; *Alvarez*	3

Overbreadth and Statutory Construction

United States v. Hansen, 599 U.S. 762 (2023)

7-2, Barrett, J.

Rule: A law is facially invalid for overbreadth only if it prohibits a **substantial** amount of protected speech **relative to its plainly legitimate sweep**; the unconstitutional applications must be realistic and the ratio lopsided. Courts first construe the statute, adopting any fairly possible constitutional reading.

Facts: Hansen defrauded noncitizens with a fake "adult adoption" path to citizenship and was convicted under a law barring "encourag[ing] or induc[ing]" illegal immigration. He argued it was overbroad because it reached advocacy. **Held:** not overbroad.

- Overbreadth is unusual: it lets a litigant whose own speech is unprotected assert others' rights, and invalidates a law that has lawful applications. It is justified by chilling concerns but is "strong medicine."
- "Encourage or induce" are criminal-law terms of art covering only intentional **solicitation and facilitation** of specific unlawful acts.
- **Constitutional avoidance** (*Ashwander* principle): if a statute can fairly be read two ways, choose the constitutional reading; courts seek harmony, not "constitutional collision." The canon doesn't override clear text.

Dissent: Jackson, Sotomayor. **Ordinary facial challenge** (contrast): show no valid applications (*Salerno*).

	Stevens	***Hansen***
Construction	Ordinary meaning; no cruelty requirement	Terms of art: solicitation and facilitation
Protected applications	Hunting videos — realistic and numerous	Advocacy excluded; remaining concerns fanciful
Result	Lopsided ratio: facially invalid	No lopsided ratio: upheld

Stretch Exercise: Ban on Sales of Actual Illegal Dogfight Videos

	Analysis
Threshold	Videos are speech (*Stevens*), and the ban turns on subject matter, so it's content-based and presumptively invalid.
Defense	Unlike § 48, it's narrow — the question *Stevens* left open. It fits an **existing** category (speech integral to crime): like *Ferber*, the market drives the crime. Alternatively, it survives strict scrutiny by targeting the commercial incentive; read narrowly (*Hansen*).
Challenge	*Stevens* refused to make cruelty depictions unprotected; *Ferber* rests on harm to children. "Illegal" where? (*Stevens*'s Japan footage.) It sweeps in journalism and exposés. Less restrictive alternative: prosecute the fights (*Alvarez*).
Likely answer	Defensible if narrowly drafted and tied to the underlying crime. [Beyond casebook: Congress's 2010 crush-video law was limited to **obscene** videos, tying it to an existing category.]

Chapter 4: Speech That May Cause Violence or Harm National Security

Type of rule	Example	Scrutiny
Content-based	"Speeches about sports teams are prohibited"	Strict
Viewpoint-based (worst form)	Banning pro-legalization publications; rejecting a "FCANCER" vanity plate while allowing vanity plates (survivor won, 2024)	Strict
Content-neutral (time, place, manner)	"No blasting speeches 10pm-6am"	Intermediate (Ch. 9)

Unprotected categories are exceptions to the ban on content-based rules. This chapter covers three, all defined **very narrowly** by Justices across the spectrum. **Every case here rejected** the argument that the speech was unprotected — know why (see the synthesis table).

Reading tip: start with the **challenged law** and how it was construed, then the facts. *Terminiello*'s facts sounded like incitement, but the jury instruction swept in protected speech.

Incitement

Terminiello v. City of Chicago, 337 U.S. 1 (1949)

5-4, Douglas, J.

Rule: Speech may not be punished for stirring anger, inviting dispute, or creating unrest; it must pose a clear and present danger of a serious evil far above public inconvenience or annoyance.

Facts: A suspended priest's hate-filled speech to a packed auditorium risked violence with protesters outside. The jury was told "breach of the peace" included speech that "stirs the public to anger, invites dispute, brings about a condition of unrest, or creates a disturbance." **Held:** conviction reversed.

- Speech may best serve its purpose when it induces unrest or stirs people to anger; the alternative is standardized ideas.
- **Dissent** (Vinson, Frankfurter, Jackson, Burton): only that counsel failed to object to the instruction.

Brandenburg v. Ohio, 395 U.S. 444 (1969)

9-0 per curiam. Overruled Whitney v. California (1927).

Rule: Advocacy of force or law violation may be punished only if it is (1) **directed to** inciting or producing (2) **imminent** (3) **lawless action** and (4) is **likely** to produce it.

Facts: A KKK leader invited a reporter to film a farm rally: hooded figures, some armed, burned a cross; he warned of possible "revengeance" against the government and announced a march on Congress. Only Klan members and journalists were present. He was convicted under Ohio's criminal syndicalism law, which punished advocating violence and assembling to advocate it. **Held:** the statute is unconstitutional.

- Abstract teaching of the moral propriety or even necessity of force differs from "preparing a group for violent action and steeling it to such action."
- Ohio's law punished **mere advocacy**, with no intent, imminence, or likelihood requirement.
- **Concurrences:** Black and Douglas would expressly reject the "clear and present danger" test, which was used to affirm WWI dissidents' convictions (*Abrams*, *Schaefer*, *Pierce*). Douglas quotes Holmes in *Gitlow*: "Every idea is an incitement."

Era	Case(s)	Standard
1919-27	*Abrams*, *Schaefer*, *Pierce*, *Whitney*	Clear and present danger / bad tendency used to punish dissident advocacy
1949-51	*Terminiello*; *Dennis*	Clear and present danger of serious evil
1969-now	*Brandenburg*	Intent + imminence + likelihood (replaced the older test in practice)

Fighting Words, Hostile Audiences, and Hate Speech

- **Fighting words (*Chaplinsky*):** personal insults so offensive they're likely to provoke the listener to attack the speaker **immediately**. The Court hasn't upheld a restriction on this theory since 1942.
- ***Cohen v. California* (1971):** a "Fuck the Draft" jacket in a courthouse hallway was not fighting words — no one present could reasonably see a **direct personal insult**, and there was no realistic prospect of violence. (Profanity point in Ch. 6.)
- **No heckler's veto (*Cox v. Louisiana*, 1965; *Edwards v. South Carolina*, 1963):** peaceful civil rights protesters can't be convicted because a hostile crowd might become violent when police can control it.
- **Police could control the crowd:** in *Cox*, a hostile crowd of 100 to 300 was separated from the student protesters by 75 to 80 armed police; in *Edwards*, police protection "was at all times sufficient," and the City Manager admitted he could have brought more officers if needed.
- **Hate speech** is generally protected. In *Collin* (Ch. 3), the village conceded it expected no violence, taking the case outside both *Brandenburg* and *Chaplinsky*.

R.A.V. v. City of St. Paul, 505 U.S. 377 (1992)

9-0 on the judgment, Scalia, J.

Rule: Government may ban an entire unprotected category because of what makes it proscribable, but it may not single out a **subset** based on topic or viewpoint.

Facts: Teenagers burned a cross in a Black family's fenced yard. St. Paul's ordinance banned symbols arousing anger "on the basis of race, color, creed, religion or gender," construed to reach only fighting words. **Held:** facially unconstitutional.

- Unprotected categories are not "invisible to the Constitution" — e.g., government may ban libel, but not only libel critical of the government.
- The ordinance was underinclusive: it didn't reach fighting words based on political affiliation, union membership, or sexual orientation.

Harvard note (1993, by coauthor Klein): *Chaplinsky* should be overruled rather than expanded — it rewards the undesirable response of fighting (unlike fleeing a false "Fire!") and gives police discretion to punish minorities and critics.

- **The critique the note answers:** scholars faulted *Chaplinsky* for assuming a white male "fight" response; women and outnumbered minorities may flee or submit instead. Prof. Kathleen Sullivan would extend the doctrine to words that cause "fright or flight" (otherwise there is "more license to insult Mother Teresa than Sean Penn"). The note's answer: abolish the doctrine rather than expand it.

Prior Restraints and National Security

Prior restraint checklist. Is the government stopping speech **before** it occurs (an injunction or licensing), rather than punishing it afterward? If so, the restraint carries a **heavy presumption** of invalidity and the government bears a **heavy burden**. The only recognized exception is *Near*'s wartime dictum (troop locations, transport sailing dates), which the Court has never actually applied.

Near v. Minnesota ex rel. Olson, 283 U.S. 697 (1931)

Prior restraint on a newspaper.

Minnesota courts enjoined a newspaper from publishing articles accusing local law enforcement of corruption. **Held:** reversed — the Framers especially opposed prior restraints. **Dictum:** protection isn't absolute; in wartime the government might prevent publication of troop numbers and locations or transport sailing dates.

New York Times Co. v. United States, 403 U.S. 713 (1971) (Pentagon Papers)

6-3 per curiam. Don't confuse with NYT v. Sullivan (defamation).

Rule: A prior restraint comes with a heavy presumption against validity (*Bantam Books*; *Near*); a general claim of harm to national security did not carry the government's heavy burden.

Facts: Daniel Ellsberg leaked a classified Vietnam War study showing the government knew the war likely couldn't be won and misled the public. The Nixon Administration sought to enjoin the *Times* and *Post*; publication was restrained for 15 days. **Held:** injunctions denied.

- **Black (with Douglas):** every moment of restraint was a flagrant violation; the press serves the governed, not the governors; "security" is a vague generality that can't override the First Amendment.
- **Timeline:** the *Times* published June 13, 1971; a temporary restraining order followed June 15; the Second Circuit enjoined the *Times* while the D.C. courts refused to enjoin the *Post*. The Court granted cert on June 25 (staying publication), heard argument June 26, and ruled June 30.
- **Dissent (Burger, Harlan, Blackmun):** the issues were hard and the decision too rushed.
- **The briefs:** the government argued a "real likelihood" of grave danger suffices and the President is best placed to judge it. The ACLU argued restraints should be limited to tactical military operations, weapons designs, and codes — and never for information bearing on public policy decisions. The government also argued that *Near*'s examples were merely illustrative and that punishment after publication would be meaningless, since the harm would already be done. The ACLU's test had two parts: the information must fall in one of those narrow categories **and** must not bear on public debate. Even plans like the Bay of Pigs would stay protected (JFK later told the *Times* that more coverage "would have saved us from a colossal

mistake"). It added that 12 of the 19 federal judges who had reviewed the papers rejected the government's harm claims.

- **Why prior restraints are worse** (Thomas Emerson, quoted by the ACLU): they bring a wider range of expression under scrutiny, shut off speech before it happens, are imposed "by a stroke of the pen" without the safeguards of criminal process, allow less public criticism, and drive toward excess.
- **Aftermath:** the Court has never upheld such a restraint. *Marchetti* and *Snepp* rested on CIA secrecy agreements (in *Snepp* the book's proceeds went to the government, and the Court never decided whether publication could be enjoined); *The Progressive* (H-bomb article) was enjoined but abandoned before appeal.

Synthesis: Why Each Unprotected-Category Argument Failed

Case	Category	Why it failed
Terminiello	Incitement	Law reached speech that merely angered; no imminence
Brandenburg	Incitement	Punished mere advocacy; no intent, imminence, or likelihood
Cohen	Fighting words	No direct personal insult; no realistic violence
Cox, Edwards	Hostile audience	Police could control the crowd
Collin	Incitement; fighting words	Village conceded no expected violence
R.A.V.	Fighting words (assumed)	Banned only a topic-based subset
***Near*; Pentagon Papers**	National security	Heavy presumption not overcome

Stretch Exercise: The Courthouse Livestream

	Analysis
Facts	An activist livestreams outside a courthouse: "we need to shut this courthouse down today." Viewers push barricades; the activist adds, "I'm not telling anyone to hurt anybody. But history remembers people who act." Ten minutes later a group breaks through and damages the entrance.
Government	Imminence ("today," crowd at the target, ten minutes); a concrete call to action; urging escalation after seeing the pushing supports intent; likelihood shown by an agitated crowd already pressing forward.
Activist	Core criticism of government; "shut it down" is common, conditional protest rhetoric; explicit disclaimer of violence; much of the audience was online; punishing speakers for volatile listeners risks a heckler's-veto effect.
Likely answer	Close; turns on **intent**. The post-pushing statement is the government's best evidence, and a properly instructed jury could convict. [Beyond casebook: *Hess v. Indiana* (1973) and *NAACP v. Claiborne Hardware* (1982) support the activist on imminence and intent.]

Chapter 5: True Threats and Speech Integral to Crime

Theme — mens rea as speech protection. The Court often forbids penalizing speech unless the speaker had a culpable mental state. This gives honest speakers "breathing room" at the cost of letting some unprotected speech go unpunished. *Brandenburg* requires **intent**; *Counterman* requires at least **recklessness**; *Williams* requires belief and intent.

True Threats

Counterman v. Colorado, 600 U.S. 66 (2023)

7-2 on the judgment, Kagan, J.

Rule: A **true threat** is a serious expression conveying that the speaker means to commit unlawful violence, judged by how a reasonable recipient would understand it. The First Amendment also requires proof that the speaker was at least **reckless** — consciously disregarding a substantial and unjustifiable risk that the words would be viewed as threatening.

Facts: Counterman sent hundreds of Facebook messages over two years to a musician he'd never met, creating new accounts when blocked; some suggested surveillance or harm ("Die."). She feared for her life and canceled performances. He was convicted under a stalking law applying a purely objective test. **Held:** vacated and remanded.

- "True" excludes jests and hyperbole ("I'll kill you if you leave dirty dishes in the sink").
- **Why a subjective element:** speakers unsure of the line, fearful of error or litigation costs, will self-censor protected speech.
- **Why recklessness** (not purpose or knowledge): it balances chilling against the real harms of threats; reckless speakers consciously accept a substantial risk of serious harm.
- **The statute:** Colorado's stalking law barred repeated communications made "in a manner that would cause a reasonable person to suffer serious emotional distress" and that did so; the only evidence was his messages.
- **Barrett's guardrails:** true threats are already narrow. The speaker must express an intent to commit unlawful violence against a particular person or group, judged by a reasonable listener who knows the whole context (tone, audience, medium, the broader exchange). Sotomayor added that online speech lacks contextual clues and that racial and cultural stereotypes can shape what a jury sees as dangerous.

Opinion	Standard	Core reason
Majority (Kagan, Roberts, Alito, Kavanaugh, Jackson)	Recklessness	Balances chilling against harm to victims
Concurrence (Sotomayor; Gorsuch in part)	Intent	Online speech lacks context; juries' norms and stereotypes vary; incitement (the closest cousin) requires intent

Opinion	Standard	Core reason
Dissent (Barrett, Thomas)	Objective only	Other categories use objective tests; the category is already narrow and context-sensitive; let legislatures calibrate

Speech Integral to Crime

Unprotected whether written or spoken: speech that **is** the crime ("Your money or your life"), **offers** or **solicits** illegal acts ("I'll sell you heroin"; "I want to hire a prostitute"), or **helps** commit or conceal one ("I'll tell you when the coast is clear" — conspiracy, aiding and abetting). **Abstract advocacy** of illegality ("cocaine should be legal") stays protected. Hard cases: general-audience how-to material (novels are protected; bomb manuals?).

United States v. Williams, 553 U.S. 285 (2008)

7-2, Scalia, J.

Rule: Offers to provide and requests to obtain contraband are categorically unprotected (*Giboney*; *Pittsburgh Press*). A law is void for vagueness only if it fails to give fair notice or invites seriously discriminatory enforcement — not merely because close cases exist.

Facts: A federal law criminalized pandering or soliciting child pornography — offers or requests concerning material the defendant believes (or intends another to believe) is child pornography. **Held:** constitutional and not vague.

- Solicitation, conspiracy, and incitement laws have always criminalized speech intended to induce crime; such offers have no social value.
- "Promotes" doesn't reach "child pornography should be legal" or even "I encourage you to obtain it"; it means recommending a **particular** item **with intent to initiate a transfer** (distinguishing abstract advocacy — *Brandenburg*; *Claiborne Hardware*).
- **Vagueness** comes from the Due Process Clause. It concerns indeterminacy about **what** fact must be proved ("annoying," "indecent"), not difficulty proving it; that is handled by the reasonable-doubt standard. Belief and intent are true-or-false facts.
- **Vagueness standard:** a law is void if it fails to give a person of ordinary intelligence fair notice of what is prohibited, or is so standardless that it invites seriously discriminatory enforcement. In First Amendment cases the Court relaxes the rule that someone whose own conduct is clearly covered can't complain of vagueness as to others. Still, "perfect clarity" has never been required.
- **Dissent (Souter, Ginsburg):** statute-specific; no dispute that speech integral to crime is unprotected.

	Vagueness	Overbreadth
Complaint	Law is **unclear**	Law reaches **too much** protected speech
Source	Due Process	First Amendment
Whose speech	Mainly the litigant's own (*Holder v. Humanitarian Law Project* — casebook says "Rights")	Third parties' (*Stevens*, *Hansen*)

	Vagueness	Overbreadth
Shared goal	Prevent chilling	Prevent chilling

Rice v. Paladin Enterprises, Inc., 128 F.3d 233 (4th Cir. 1997)

3-0, Luttig, J.

Rule: Speech — even publishing — that aids and abets a crime is unprotected where the publisher **intended** to assist criminals and the material was used exactly as intended.

Facts: Paladin published *Hit Man*, a detailed manual for contract killers; Perry used it to murder three people. Paladin **stipulated** that it intended to assist murderers and knew the book would be used "upon receipt" for murder. **Held:** the First Amendment doesn't bar the victims' families' aiding-and-abetting suit.

- Copycat cases differ: readers **misuse** novels and films; publishers don't intend to assist crime.
- Evidence of intent will almost never exist apart from stipulations like these.
- News reporting is never a basis for liability.
- Not all manuals: the stipulations, detailed instructions, exhortation to murder, and lack of any legitimate purpose made the case unique.
- **More stipulations:** Perry also followed another Paladin book, *How to Make a Disposable Silencer*, and Paladin stipulated that it assisted Perry in these very murders. Major networks, newspapers, and publishers filed as amici warning that "no expression" would be safe; the court said copycat cases involve misuse, not use "precisely as intended."

Stretch Exercise: A Bomb Manual Without Stipulations

	Analysis
For prosecution	Aiding and abetting is speech integral to crime; publishers aren't exempt (*Paladin*); operational know-how, not ideas; catastrophic harm.
Against	No extrinsic intent evidence; legitimate audiences (engineers, researchers, journalists, novelists); general publication isn't a one-to-one offer like *Williams*; *Stevens* bars creating categories by balancing.
What the government should prove	**Specific intent** to facilitate a crime (as in *Brandenburg*, not *Counterman*'s recklessness), evidence beyond the text itself, actual use in a crime, and narrow construction (*Hansen*). [Beyond casebook: 18 U.S.C. § 842(p) takes this intent-based approach.]

Garcia v. Character Technologies, Inc., 785 F. Supp. 3d 1157 (M.D. Fla. 2025)

Conway, J. Preliminary ruling.

Rule: A distributor may assert its users' right to receive speech, but output counts as speech only if it is **expressive**; the court was not prepared to hold that chatbot output is speech.

Facts: In the first wrongful-death suit against an AI chatbot company, a 14-year-old (Sewell Setzer III; the casebook spells it "Seltzer") died by suicide after heavy use of Character.AI. The complaint alleges an anthropomorphized, manipulative design marketed to children. **Held (preliminary):** First Amendment

dismissal denied.

- Relying on Barrett's *Moody v. NetChoice* concurrence: an algorithm carrying out a human's expressive choice may be speech; when owners "hand the reins" to an LLM, it's unclear any person made an expressive choice.
- **Why the companies relied on users' rights:** claiming the output as the company's own expression would mean owning its words and the liability for them, would admit deliberate design (like *Paladin*'s stipulations, helping prove intent), and would reinforce the product-design framing. [Beyond casebook: it would also undercut Section 230 immunity for third-party content.]
- **The allegations:** chatbot characters sent romantic messages and urged him to stay "loyal"; when he expressed suicidal thoughts, the system steered back to the subject instead of activating safeguards; he died immediately after a character told him to "come home." The company allegedly worked in partnership with Google.
- **Weak analogies:** the defendants compared the characters to non-player characters in video games and to other users on social media, both of which get First Amendment protection, but the court found they "do not meaningfully advance" those analogies.

Casebook study tips. Learn case names as shorthand for doctrines: "under *Chaplinsky*," "the *Brandenburg* rule," "*Giboney* and its progeny," "under *Counterman*." Know the most recent case on each doctrine, since the Court refines and sometimes overrules its earlier cases. In practice, cite **binding** precedent: your circuit and the Supreme Court in federal court, or the state's high and appellate courts in state court. Other decisions are only **persuasive** authority. Failing to cite binding precedent can be a professional-responsibility violation.

Chapter 6: Immoral Speech

Categories: obscenity, sexually explicit speech, child pornography, profanity, and violent imagery. "Indecent" describes speech regarded as immoral but not obscene. What unites them: the government seeks to suppress the speech for reasons of morality.

Immoral speech checklist. (1) Did the Court treat the speech as an **unprotected category** (rational basis only)? (2) If disputed, how did it define the category's **boundaries** (e.g., *Miller*; "obscene for kids")? (3) If protected, what **standard of review** applied (content-based usually means strict scrutiny)? (4) What was the **bottom line, and why**? Then ask the two overarching questions: **Who** is the government protecting, adults or kids? And what **harm** is targeted, harm from the content itself or an indirect harm, such as exploitation of real children?

Governing Principles

- **Adults:** the government almost never can restrict immoral speech to protect adults from its content. The exception is obscenity, narrowly defined. Offended adults are expected to look away, walk away, or toss out the mail.
- **Kids:** the government sometimes can protect kids, especially from sexually explicit speech — but it can't block adult access, and kids have their own First Amendment rights (*Brown*).
- **Secondary effects:** local governments may zone adult businesses to reduce crime and lower property values (*Renton*).
- **Child pornography** made with actual children may be banned to dry up the market for abuse (*Ferber*) — not virtual images or adult look-alikes (*Free Speech Coalition*). But offers to buy or sell material believed to involve real children may be punished (*Williams*).

Who Are We Protecting: Adults or Kids?

Bolger v. Youngs Drug Products Corp., 463 U.S. 60 (1983)

9-0 on the bottom line, Marshall, J.

Rule: The government can't shield adults from immoral content (except obscenity). It can shield kids from some content, but only if the restriction doesn't stop adults from getting it. The government "may not reduce the adult population to reading only what is fit for children."

Facts: A federal law banned mailing unsolicited contraceptive ads to homes. **Held:** the ban violates the First Amendment.

- **Shielding adults from offense** "carries little weight." Outside obscenity, offensiveness doesn't justify suppression; recipients aren't a captive audience, and "the short, though regular, journey from mail box to trash can is an acceptable burden" (citing *Cohen*).
- **Helping parents** is "undoubtedly substantial," but the ban fails: parents already control their mail, and the ban purges material "entirely suitable for adults."
- *Butler v. Michigan*: such a ban would "burn the house to roast the pig"; mailbox discourse can't be limited to "that which would be suitable for a sandbox."

- *Pacifica* distinguished as narrow: broadcasting is "uniquely pervasive" and "uniquely accessible to children."

Cohen v. California, 403 U.S. 15 (1971)

5-4, Harlan, J. (Fighting-words point in Ch. 4.)

Rule: The presence of unwilling viewers doesn't automatically justify suppressing offensive speech; they can "avoid further bombardment of their sensibilities simply by averting their eyes."

Facts: Cohen wore a jacket reading "Fuck the Draft" in a Los Angeles courthouse corridor where women and children were present, to show the depth of his feelings about the Vietnam War. He was convicted of disturbing the peace by offensive conduct (30 days). **Held:** reversed; the speech was protected.

FCC v. Pacifica Foundation, 438 U.S. 726 (1978)

5-4 on the bottom line; Stevens, J., plurality.

Rule: The government may regulate a broadcast that is **indecent but not obscene**, because broadcasting is uniquely accessible to children. The holding is **narrow** and rests on a nuisance rationale in which context is all-important.

Facts: A radio station aired George Carlin's "Filthy Words" monologue at 2 p.m. A father driving with his young son complained. The FCC issued a declaratory order finding the broadcast indecent, without formal sanctions. **Held:** the FCC's action was upheld.

- **Why broadcasting is special:** children have access to radios, often unsupervised; radios are in the home, where privacy gets extra deference; unconsenting adults may tune in without warning; and spectrum is scarce and licensed in the public interest.
- **The FCC's approach:** it found authority in 18 U.S.C. § 1464 ("obscene, indecent, or profane language" by radio) and used a nuisance model that **channels** rather than bans. A valuable broadcast preceded by warnings might be acceptable late at night but not when children are listening. Pacifica had warned listeners and aired the monologue during a program on attitudes toward language.
- Cohen's written message might have been incomprehensible to a first grader, but the broadcast "could have enlarged a child's vocabulary in an instant."
- **Nuisance:** time of day, program content, and medium matter. A nuisance may be "a pig in the parlor instead of the barnyard."
- **Not decided:** two-way radio, an occasional expletive, or criminal prosecution. *Pacifica* returns in Ch. 9 (time, place, and manner).

Takeaway from *Cohen* and *Pacifica*: profanity is protected speech. Calling speech "indecent" or "profane" generally doesn't mean it can be restricted (*Cohen*; the FCANCER plate, Ch. 4, a district court case). *Pacifica* is the unusual, narrow exception.

Protecting Adults: Obscenity and Secondary Effects

Rule: Obscenity is unprotected. Under *Miller v. California* (1973), still good law, speech is obscene only if **all three** are met: (a) the average person, applying contemporary community standards, would find the work, taken as a whole, appeals to the **prurient interest**; (b) it depicts or describes, in a **patently offensive** way, sexual conduct specifically defined by state law; and (c) the work, taken as a whole, lacks **serious literary, artistic, political, or scientific value**.

- **The challenge:** defining obscenity without sweeping in valuable sexually explicit works. Before *Miller*, Justice Stewart said, "I know it when I see it" (*Jacobellis*, 1964), and the Court's "movie days" gave lower courts little guidance. Justices Black and Douglas skipped the movie days because they thought obscenity is protected speech (Bob Woodward, *The Brethren*).
- **Prurient interest** means "a shameful or morbid interest in nudity, sex, or excretion," not a normal interest in sex (*Brockett v. Spokane Arcades*, 1985).
- **Prong (c) matters most:** it protects works that, as a whole, have value, even if isolated scenes might seem obscene.
- Because obscenity is defined so narrowly, much deeply offensive speech is protected — and the casebook agrees it's more dangerous to let government go down that path.
- Some Justices continued to dissent that the *Miller* test is imprecise and chills protected speech, but it remains good law, with no serious chance of being overruled.

***Hudnut* revisited** (full case in Ch. 3): the Indianapolis ordinance didn't track *Miller* — no prurient interest, no offensiveness, no community standards, no work-as-a-whole inquiry, and value was irrelevant. Its drafters saw those omissions as virtues; the court saw viewpoint discrimination. Drafter Catharine MacKinnon asked, "if a woman is subjected, why should it matter that the work has other value?"

Renton v. Playtime Theatres, Inc., 475 U.S. 41 (1986) — Secondary Effects

Described in the casebook.

Rule: Zoning laws that confine adult businesses get **intermediate** scrutiny, even though partly content-based, because they target **secondary effects** (crime, property values), not the message.

The doctrine is narrow: the Court has refused to extend it beyond adult entertainment establishments.

Protecting Kids: Child Pornography

New York v. Ferber, 458 U.S. 747 (1982)

Unanimous on the bottom line, White, J.

Rule: Child pornography made with real children is **unprotected**, even if not obscene under *Miller*, because distribution is intrinsically related to the sexual abuse of the children used to make it.

Facts: New York criminalized distributing material depicting sexual performances by children under 16, without requiring obscenity. **Held:** upheld.

- Preventing sexual exploitation and abuse of children is an objective of "surpassing importance."
- *Ferber* was the Court's first look at a statute limited to sexual depictions of children. The federal government and 47 states had laws aimed at production, and at least half of them didn't require obscenity; *Miller* had been an accommodation between protecting unwilling recipients and the dangers of

censorship.

- **Two links to abuse:** the materials are a permanent record, and circulation worsens the harm; and the distribution network must be closed to control production.
- Production is clandestine, but marketing needs a visible apparatus, so drying up the market may be the only practical method of enforcement.
- The value of such material is "exceedingly modest, if not de minimis."
- **Casebook note:** the rationale resembles secondary effects — the harm is indirect (abuse of real children in production), not caused by the message.

Ashcroft v. Free Speech Coalition, 535 U.S. 234 (2002)

6-3, Kennedy, J. Thomas concurred in the judgment; O'Connor concurred in part and dissented in part; Rehnquist and Scalia dissented.

Rule: *Ferber* does not extend to sexually explicit images made **without real children** (computer-generated images or adults who look like minors).

Facts: The Child Pornography Prevention Act of 1996 (CPPA) banned sexually explicit images that "appear to" depict minors. **Held:** the extension violates the First Amendment.

- It goes beyond *Ferber*, whose rationale depended on protecting real children exploited in production.
- It bans speech regardless of serious value. Teen sexuality and child abuse are enduring themes in art — Juliet is 13 in *Romeo and Juliet*.
- "Appear to be under 18" is higher than many states' ages for marriage and consent.
- One explicit scene would trigger punishment without inquiry into value, but "the artistic merit of a work does not depend on the presence of a single explicit scene."
- *Ferber* itself relied on virtual images as a permissible alternative; the CPPA criminalized that alternative.

***United States v. Williams* revisited** (Ch. 5): offers and requests for child pornography are speech integral to crime. The tricky part: the law covered material the buyer or seller **believed** depicted a real child. The Court held such offers may be punished even if the belief is mistaken, stressing that technology makes it nearly impossible to prove which images involve real children.

Protecting Kids: Age-Gating

Ashcroft v. ACLU, 542 U.S. 656 (2004) ("*Ashcroft II*")

5-4, Kennedy, J. Rehnquist, O'Connor, Scalia, and Breyer dissented.

Rule: Under **strict scrutiny**, a content-based law that suppresses a large amount of speech adults have a right to receive is invalid if **less restrictive alternatives** would be at least as effective; the government must prove they are not.

Facts: The Child Online Protection Act (COPA) criminalized posting material "harmful to minors" online for commercial purposes, with an affirmative defense for age verification (e.g., a credit card). **Held:** likely unconstitutional.

- **Filters are less restrictive:** they restrict at the receiving end, not the source; adults needn't identify themselves; and no speech is criminalized, so chilling is diminished.

- **Filters may be more effective:** they block foreign sites, can't be evaded by minors with credit cards, and cover email.
- Filters are imperfect, but the government offered no specific evidence that COPA would work better.

Free Speech Coalition v. Paxton, 145 S. Ct. 2291 (2025)

6-3, Thomas, J. Kagan, Sotomayor, and Jackson dissented.

Rule: A law requiring age verification to keep minors from speech that is **obscene as to them** gets **intermediate scrutiny**, because its burden on adults is incidental. Texas's law satisfies it.

Facts: Texas H.B. 1181 requires commercial websites publishing sexually explicit content to verify visitors' ages. **Held:** constitutional.

- **Two traditional powers:** states may ban speech obscene to the public at large, and may prevent children from accessing speech that is **obscene to children** (the *Miller* test adjusted for minors; *Ginsberg v. New York*, 1968).
- **Why intermediate scrutiny:** any burden on adults is "only an incidental effect on protected speech" (*Boy Scouts v. Dale*).
- **Earlier cases distinguished:** *Reno v. ACLU* (1997) applied strict scrutiny because the Communications Decency Act operated as a ban on adult speech; its age-verification defense was illusory given the technology. The internet has changed dramatically since *Reno* and *Ashcroft II* (smartphones, streaming).
- **Rational basis rejected:** it applies only when no fundamental rights are implicated; adults have a real, if incidentally burdened, right. Intermediate scrutiny is "deferential but not toothless."
- **The test:** a law survives intermediate scrutiny if it advances **important** governmental interests unrelated to the suppression of free speech and does not burden **substantially more speech than necessary**. Texas and the Fifth Circuit had argued for rational basis.
- **Applied:** the interest in shielding children from sexual content is "important, even compelling." The law adapts traditional in-person age checks to the digital age, using government ID or transactional data — methods used for online gambling, alcohol, tobacco, car rentals, and by the pornography industry itself. Less restrictive alternatives (filters, ISP blocking) don't defeat a legitimate legislative choice under intermediate scrutiny. Privacy is protected by the incentives of sites and verifiers, and stigma has never exempted the industry from regulation.

Question to consider: did *Paxton* effectively overrule *Ashcroft II*? The filtering alternative that won in 2004 lost in 2025 because of the lower standard of review. The Court framed the earlier cases as involving effective bans on adult access.

Protecting Kids: Violent Imagery

Brown v. Entertainment Merchants Association, 564 U.S. 786 (2011)

7-2, Scalia, J. Alito (with Roberts) concurred; Thomas and Breyer dissented.

Rule: Violent imagery is **protected**; there is no new unprotected category for violence, even for minors. A content-based ban on selling violent video games to minors gets **strict scrutiny**, and California's fails.

Facts: California banned selling or renting "violent video games" to minors. **Held:** unconstitutional.

- **Video games are speech:** they communicate ideas through characters, dialogue, plot, music, and interaction; it is "difficult to distinguish politics from entertainment, and dangerous to try."
- **No new category** (following *Stevens*): legislatures can't add categories by balancing value against social costs — a "startling and dangerous" proposition. Obscenity covers only depictions of **sexual conduct**, not violence.
- ***Ginsberg* distinguished:** it adjusted an existing category (obscenity) for minors; California sought a wholly new category for children only.
- **Minors' rights:** minors are entitled to a significant measure of First Amendment protection; there is no "free-floating power to restrict the ideas to which children may be exposed."
- **No tradition:** Grimm's fairy tales, the *Odyssey*, Dante's *Inferno*, and *Lord of the Flies* are full of gore. Past panics targeted dime novels, movies, radio, comics, television, and music.
- **Interactivity** isn't new (choose-your-own-adventure books); it differs in degree, not kind. Judge Posner: all literature is interactive.
- **Strict scrutiny fails:** no causation (the research shows correlation, suffers methodological flaws, and finds minuscule effects); wildly **underinclusive** (similar effects from Bugs Bunny cartoons, E-rated games, even pictures of guns), which alone defeats the law; and the industry's rating system already helps parents, so filling the "modest gap" isn't compelling.
- **The evidence:** California conceded it couldn't show a direct causal link. Its main expert, Dr. Craig Anderson, relied on studies that every court to consider them had rejected; he admitted the effects were "about the same" as those of violence on television.

Synthesis: Standards and Outcomes

Case	Speech	Protecting	Standard	Result
***Cohen* (1971)**	Profanity	Adults	Protected	Conviction reversed
***Pacifica* (1978)**	Indecent broadcast	Kids	Narrow broadcast / nuisance rationale	FCC upheld
***Bolger* (1983)**	Contraceptive ads	Adults and kids	Protected; interests insufficient	Ban struck
***Miller* (1973)**	Obscenity	Adults	Unprotected (three-part test)	Test defined
***Hudnut* (1985)**	"Degrading" explicit material	Adults	Viewpoint discrimination	Struck
***Renton* (1986)**	Adult business zoning	Communities	Intermediate (secondary effects)	Upheld
***Ferber* (1982)**	Child porn with real children	Real children	Unprotected	Upheld
***Free Speech Coalition* (2002)**	Virtual child porn	Kids	Protected	Struck

Case	Speech	Protecting	Standard	Result
***Williams* (2008)**	Offers and requests for child porn	Real children	Speech integral to crime	Upheld
***Ashcroft II* (2004)**	Online material harmful to minors	Kids	Strict	Struck (filters)
***Paxton* (2025)**	Online age verification	Kids	Intermediate	Upheld
***Brown* (2011)**	Violent video games	Kids	Strict	Struck

Stretch Exercise: Teen Sexting

	Analysis
Issue	Should consensual teen sexting be treated as unprotected child pornography? Such images often fit statutory definitions; some states reduce penalties for teens, many don't, federal law draws no distinction, and prosecutors have discretion.
Questions	Does *Ferber*'s rationale (drying up a market that exploits children) fit a 15-year-old sending her own image to a partner? If not, may the government regulate it at all? Should the partner's age matter (15, 17, 18, 25)? What if a 15-year-old partner forwards the image to others ("revenge porn")?
Analysis	*Ferber*'s market-and-exploitation rationale fits poorly for a self-made image shared consensually with a peer. Its other harm — a permanent record whose circulation worsens the injury — fits forwarding well. A sensible rule would turn on exploitation: an adult partner or nonconsensual redistribution looks like *Ferber*; consensual exchange between peers does not.